

STATE OF NEW YORK

8823--B

2025-2026 Regular Sessions

IN ASSEMBLY

June 9, 2025

Introduced by M. of A. ZINERMAN, OTIS -- read once and referred to the Committee on Corporations, Authorities and Commissions -- recommitted to the Committee on Corporations, Authorities and Commissions in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to establishing a usage monitor program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 44 of the public service law is amended by adding a
2 new subdivision 8 to read as follows:

3 8. The commission shall require every gas and electric utility corpo-
4 ration utilizing smart meters to establish a usage monitor program for
5 the purposes of notifying residential customers when energy usage
6 exceeds a cost or usage threshold in a given billing period determined
7 by the residential customer.

8 a. The usage monitor program shall provide residential customers with
9 daily updates on their electricity and/or gas usage. This information
10 shall be viewable to the customer on the gas and/or electricity utility
11 corporation website within a customer's online account. Participating
12 residential customers shall be able to utilize within their customer
13 account a function to set a monthly usage threshold that is measured in
14 kilowatt hours (kWh) for electricity service, and therms or hundred
15 cubic feet (CCF) for gas service.

16 b. The usage monitor program shall notify residential customers elec-
17 tronically or by mail when half of their determined energy usage thresh-
18 old is met, and when their usage threshold exceeds their determined
19 threshold. This electronic and paper notification shall include an esti-
20 mate of their monthly bill.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 c. The usage monitor program shall be an elective program for residen-
2 tial customers to join.

3 d. For the purposes of this subdivision, "smart meter" shall mean a
4 metering device that electronically measures and transmits energy usage
5 to a utility for the purposes of billing and monitoring.

6 § 2. This act shall take effect one year after it shall have become a
7 law.